

cannot agree upon a neutral arbitrator, the Superior Court in the county in which the Employer maintains its principal place of business shall appoint the arbitrator."

Plaintiff's request to arbitrate with JAMS was not in and of itself contrary to the language of the agreement, which does not specify a particular organization to conduct the arbitration. However, the agreement does specify the procedure for selecting a arbitrator in the event that parties are unable to mutually select a neutral arbitrator. (Sagaser Decl., Ex. A, ¶ 8.) Here, the declarations of counsel for both parties indicate the parties have been unable to agree upon the method to choose an arbitrator and unable to agree upon a neutral arbitrator. (Sagaser Decl., ¶¶ 6, 8; Nobles Decl., ¶¶ 6-7.) As such, the agreement requires the selection of the arbitrator be shifted to the court. Defendant interprets this to require the parties' compliance with Code of Civil Procedure section 1281.6, which is consistent with the agreement specifying that the arbitration shall be conducted according to the procedures of the California Arbitration Act.

Section 1281.6 provides in pertinent part,

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

(Code Civ. Proc., § 1281.6.)

Here, neither party has submitted persons they intend to nominate to serve as arbitrator.

In light of the parties' inability to mutually agree on an arbitrator, the court intends to grant defendant's motion to compel arbitration consistent with the terms of the arbitration agreement. The parties are directed to provide to the court a joint list of persons nominated for appointment as arbitrator within 10 days. Pursuant to Code of Civil Procedure section 1281.6, the court will select five persons from that list and provide notice to the parties of the nominees. Should the parties fail to select an arbitrator from the court's nominees within five days, the parties are directed to file with the court a request for the court to appoint the arbitrator from its list of nominees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/28/2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Nannette Regua v. Sandy Romero Crane**
Superior Court Case No. 24CECG01430

Hearing Date: July 30, 2026 (Dept. 503)

Motion: by Defendant Sandra Crane for Leave to File Cross-Complaint against Plaintiff Nannette Regua

Tentative Ruling:

To deny Defendant Sandra Crane's motion for leave to file a cross-complaint against plaintiff Nannette Regua.

Explanation:

Defendant Sandy Crane ("Crane" or "defendant") seeks leave to file a cross-complaint against plaintiff Nannette Regua. ("Regua" or "plaintiff.")

Pursuant to Code of Civil Procedure section 428.50, subdivision (a), a party is entitled to "file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint." Furthermore, "[a]ny other cross-complaint may be filed at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50, subd. (b).) If a cross-complaint is not filed within these guidelines, it may only be filed with leave of the court, who may grant it "in the interest of justice at any time during the course of the action." (Code Civ. Proc., § 428.50, subd. (c).) Furthermore, under Code of Civil Procedure section 426.50, "[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action."

Cross-complaints may be either permissive or compulsory. (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 863–864; see Code Civ. Proc., §§ 428.10, 428.30 & 428.50.) "Permission to file a permissive cross-complaint is solely within the trial court's discretion." (*Id.* at 864 (citing *Orient Handel v. United States Fid. and Guar. Co.* (1987) 192 Cal.App.3d 684, 701).) In contrast, cross-claims against complainants arising from the same transaction or series thereof, existing at the time of filing an answer, are compulsory. (See, e.g., Code Civ. Proc., §426.30(a); *Al Holding Co. v. O'Brien & Hicks, Inc.* (1999) 75 Cal.App.4th 1310, 1313-14; see also Weil & Brown, *Civ. Pro. Before Trial* (The Rutter Group 2011) ¶¶ 6:516, 6:511 and 6:581.) Leave to file compulsory cross-complaints "shall" be granted where moving parties acted in good faith. (Code Civ. Proc., § 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.)

Plaintiff purchased property with her parents in 2016. At that time, the escrow company made a mistake in drafting the vesting deed. Plaintiff's parents died in 2022 and 2023, respectively, after which Regua discovered the error. Regua brought this action to quiet title to the property. Regua filed a motion for summary adjudication against Crane. On November 19, 2025, this court granted summary adjudication in favor of Regua on her causes of action for quiet title and declaratory relief. (Johnson Dec., ¶13, Ex. H.) Notice of the order granting Regua's motion for summary adjudication was served on Crane on November 19, 2025. (*Id.*)

Crane's proposed cross-complaint "concern alleged control, concealment, and conversion of estate assets following the deaths of Manuel and Victoria Romero." (Crane Decl., ¶13.) The proposed cross-complaint alleges that "The claims asserted herein arise from the handling, control, concealment, and disposition of estate assets and related family property interests and are distinct from the quiet title determination previously addressed by the Court." (X-Comp, ¶ 6.)

Here, Crane has offered no explanation how her claims are related to Regua's quiet title action, or the drafting mistake in 2016 when Regua and her parents purchased property in Fresno, other than that her cross complaint pertains to the same interested parties and property interests. Accordingly, these claims are not compulsory claims, and the court declines to exercise its discretion to grant leave to amend.

Furthermore, Crane has offered no explanation for waiting two years to bring her cross-complaint, and more notably, after this Court has already granted summary adjudication on Regua's claims.

Accordingly, Crane's motion for leave to file a cross-complaint against plaintiff Regua is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/28/2026.
(Judge's initials) (Date)